

AMENDMENT NO. 1 TO DATA PROCESSING AGREEMENT

Northwind Systems, Inc. and Acme Corporation

Agreement ID: NW-DPA-ACME-2026-A1

Counterparty: Acme Corporation (Delaware, USA)

Effective Date: 20 August 2026

Status: EXECUTED – FULLY SIGNED BY BOTH PARTIES

Amends: NW-DPA-ACME-2025-0114 (Data Processing Agreement, 14 January 2025)

1. PRECEDENCE

1.1 Notwithstanding any prior agreement between the parties, the provisions of this Amendment control and supersede any conflicting provision of the Data Processing Agreement dated 14 January 2025.

2. LOG RETENTION (REPLACES SECTION 2.1 OF THE DPA)

2.1 Customer Data, **including application logs, diagnostic logs and audit logs, shall not be retained for more than thirty (30) days** from the date of creation.

2.2 Retention beyond thirty (30) days for any category of Customer Data requires Customer's prior written consent, obtained on a per-instance basis.

2.3 Backup copies shall not be retained for more than seven (7) days beyond the period in Section 2.1.

3. DATA RESIDENCY (REPLACES SECTION 3.1 OF THE DPA)

3.1 Customer Data shall be stored and processed **exclusively within the European Economic Area**. Transfer to, or storage in, any facility outside the EEA is prohibited without a prior executed Standard Contractual Clauses addendum.

4. SUB-PROCESSORS (REPLACES SECTION 4.2 OF THE DPA)

4.1 Northwind shall provide Customer **at least thirty (30) days prior written notice** of any intended addition or replacement of a sub-processor that processes Customer Data.

4.2 Customer may object to a proposed sub-processor within the notice period, in which case the parties shall negotiate in good faith.

5. NO OTHER CHANGES

5.1 Except as expressly amended herein, the Data Processing Agreement remains in full force and effect.

SIGNATURES

NORTHWIND SYSTEMS, INC. By: /s/ Dana Whitfield Title: VP Legal Date: 20 Aug 2026

ACME CORPORATION By: /s/ Martin Reyes Title: General Counsel Date: 20 Aug 2026

Execution status: countersigned. Envelope ID NW-ESIGN-4471-ACME-A1.